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Case Number: 26STCV00526 Hearing Date: August 20, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Demurrer - without Motion to Strike

The Demurrer is sustained as to Cross-Complainant Steven Kamenetsky on every cause of action without leave to amend. The Demurrer is sustained as to Michael Kamentsky on the Second and Fourth Causes of Action, with 20 days leave to amend and otherwise overruled.

BACKGROUND

Plaintiff Karen Petrosov (Petrosov) filed this action against Tanya Kurlyand and Steven Kamenetsky, alleging that he holds record title to a residence in Encino (the Property) and that Defendants assert claims to it adverse to his title. Steven Kamenetsky (Steven) and Michael Kamenetsky (Michael), individually and as trustee of the Kamenetsky Revocable Living Trust (the Trust) (collectively, “Cross-Complainants”), filed a Cross-Complaint against Petrosov and Eliza Hovhannisyan (collectively, “Cross-Defendants”). Cross-Complainants allege that Petrosov induced their father, Leonid Kamenetsky (Leonid), to place the Property in a limited liability company on the promise that Leonid would remain its owner, and that Petrosov then conveyed the Property to himself.

The causes of action in the Verified First Amended Cross-Complaint (FACC) are: (1) Fraudulent Inducement-Misrepresentation; (2) Negligent Misrepresentation; (3) Quiet Title; (4) Conversion; (5) Negligence; and (6) Declaratory Relief.

Cross-Defendants filed a Demurrer. Cross-Complainants filed an Opposition.

The Court previously sustained Cross-Defendants' demurrer to the original Cross-Complaint with leave to amend, on the ground that the pleading did not establish Cross-Complainants' standing.

REQUEST FOR JUDICIAL NOTICE

Cross-Defendants request judicial notice of certified copies of four instruments recorded in the Official Records of Los Angeles County: a 2012 grant deed conveying the Property from Leonid to VIP Bail Bonds Corporation (VIP Corp.), a 2025 grant deed conveying it from VIP Corp. to Asset Managment LLC (the Company), and two deeds of trust naming VIP Corp. as trustor. (RJN, at pp. 1-2.) A recorded deed is an official act of the executive branch, and the request is granted as to those four instruments. (Evid. Code, § 452, subds. (c), (h), § 453; Ragland v. U.S. Bank National Assn. (2012) 209 Cal.App.4th 182, 194.)

Cross-Defendants also ask the Court to incorporate by reference the copies of the same four instruments filed with the preliminary injunction papers. (RJN, at p. 3.) Those filings are records of this Court and the Court takes judicial notice of them. (Evid. Code, § 452, subd. (d).) The Court likewise takes judicial notice of the original Cross-Complaint and of the June 1, 2026 minute order sustaining the demurrer to it. (Ibid.)

Judicial notice of a recorded instrument extends to "the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language," and the Court "may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face." (Linda Vista Village San Diego Homeowners Assn., Inc. v. Tecolote Investors, LLC (2015) 234 Cal.App.4th 166, 185.) Notice does not establish the truth of the facts recited inside an instrument.

LEGAL STANDARD

When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "'A demurrer tests the pleading alone, and not the evidence or the facts alleged.' [Citation.]" (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th

1308, 1315.) As such, courts assume the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) However, they do not accept as true deductions, contentions, or conclusions of law or fact. (Stonehouse Homes LLC v. City of Sierra Madre (2008) 167 Cal.App.4th 531, 538.)

A pleading sets forth "the ultimate facts constituting the cause of action, not the evidence by which plaintiff proposes to prove those facts." (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 211-212.) The label the pleader attaches does not govern. "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38-39.)

ANALYSIS

I. Equitable Interest

Cross-Defendants argue that the FACC alleges no ultimate facts establishing that Leonid kept any legally cognizable interest in the Property after conveying legal title to VIP Corp. in 2012, and that no cause of action survives without that interest. (Dem., at pp. 6-8, 12.) Every standing theory and every claim depends on that interest, so the Court takes it first.

A. Ultimate Facts

Here, the FACC alleges that in 2012 Leonid transferred ownership of the Property to a business entity he owned and operated as chief executive officer, and that the Property remained the family's primary residence. (FACC, ¶ 10.) It alleges that the entity held title solely at Leonid's direction and for his benefit, that he kept the exclusive beneficial ownership, and that he made every decision concerning the Property's ownership, management, and disposition. (FACC, ¶ 11.) It alleges that no person other than Leonid exercised independent decision-making authority over the Property. (FACC, ¶ 12.) And it alleges that the 2012 transfer of record title was undertaken solely as part of Leonid's business and estate planning and was not intended to divest him of beneficial ownership. Leonid is alleged to have remained in possession through his family and to have paid or caused the payment of the expenses of the Property. (FACC, ¶ 13.)

“A resulting trust arises by operation of law from a transfer of property under circumstances showing that the transferee was not intended to take the beneficial interest.” (Lloyds Bank California v. Wells Fargo Bank (1986) 187 Cal.App.3d 1038, 1043 (Lloyds Bank).) A resulting trust is a “creature of equity” that “carries out the inferred intent of the parties.” (Fidelity National Title Ins. Co. v. Schroeder (2009) 179 Cal.App.4th 834, 848.) The rule is not confined to the person who paid the purchase price. In Fidelity National Title Ins. Co. v. Schroeder (2009) 179 Cal.App.4th 834, 839-840 (Schroeder), a joint tenant conveyed his own record interest to his co-tenant for no consideration. The Court of Appeal held that the theory was available to the grantor, that the trial court should have considered whether he retained an equitable interest, and it reversed the judgment on that cause of action and remanded. (Id. at pp. 849-851.) What creates the trust is the intention the circumstances of the transfer disclose, and a grantor who conveys his land can be the person in whose favor it runs. (Lloyds Bank, supra, 187 Cal.App.3d at p. 1043; Schroeder, supra, 179 Cal.App.4th at pp. 848-850.)

Cross-Defendants argue that the allegations of dominion and control are equally consistent with Leonid acting as VIP Corp.’s officer. (Dem., at pp. 10-11; Reply, at p. 4.) A sole shareholder’s control over corporate property is an ordinary incident of owning the corporation. A transfer undertaken as part of estate planning may also be a transfer of the beneficial interest as readily as an arrangement to hold it for the transferor. The result therefore does not depend on the allegations of dominion and control. It depends on paragraph 13, which alleges the purpose of the 2012 transfer and that Leonid did not intend it to divest him of the beneficial ownership. That is the circumstance the doctrine requires, and on demurrer the Court draws the inference the pleading supports.

Cross-Defendants respond that the FACC never identifies which equitable doctrine it invokes, that the doctrine is itself an ultimate fact the pleader must allege, and that without it neither the Court nor Cross-Defendants can tell whether the facts a given theory requires are present. (Dem., at pp. 7-8; Reply, at p. 4.) A pleader alleges facts, and the doctrine those facts invoke is for the Court. (Quelimane Co. v. Stewart Title Guaranty Co., supra, 19 Cal.4th at pp. 38-39.) The facts alleged here address the concern behind the argument. They allege the transfer, the circumstances attending it, and the absence of any intention that the transferee take the beneficial interest. Those are the elements of a resulting trust arising by operation of law.

B. Recorded Instruments

Cross-Defendants next argue that the FACC cannot be squared with the recorded grant deeds or with Civil Code section 1105, which provides that "[a] fee simple title is presumed to be intended to pass by a grant of real property, unless it appears from the grant that a lesser estate was intended." (Mot., at pp. 8-9.) The presumption fixes the estate the 2012 deed conveyed, and the FACC alleges that the entity took and held record title, which is what the deed shows. A trust arising by operation of law addresses the beneficial interest, which the deed does not, and it arises from circumstances showing "the transferee was not intended to take the beneficial interest." (Lloyds Bank, supra, 187 Cal.App.3d at p. 1043.) The grant deed in Schroeder passed the grantor's record interest, and the court nonetheless held that he could be found to have retained the equitable interest. (Schroeder, supra, 179 Cal.App.4th at pp. 849-850.) A pleading asserting a resulting trust therefore accepts the conveyance and works from it.

One allegation does conflict with the noticed instruments. Paragraph 29 alleges that Leonid transferred the Property to the Company in July 2025; the recorded deed names VIP Corp. as the grantor. (RJN, Exh. B.) The Court disregards the allegation to the extent it makes Leonid the grantor. (Graham v. Bank of America, N.A., supra, 226 Cal.App.4th at p. 605.) What remains is what the deed shows, together with the allegation that VIP Corp. conveyed at Leonid's direction. That allegation states the FACC's theory of the arrangement and does not contradict the deed. (FACC, ¶ 28.)

Cross-Defendants argue that the recorded deeds of trust show VIP Corp. exercising incidents of ownership in its own name through Leonid acting as its officer, and that the FACC alleges nothing separating Leonid's personal conduct from his corporate authority. (Dem., at pp. 10-12; Reply, at pp. 4-5.) A corporation is "a distinct legal entity separate from its stockholders and from its officers." (Merco Construction Engineers, Inc. v. Municipal Court (1978) 21 Cal.3d 724, 729.) The instruments establish that VIP Corp. encumbered the Property as record owner, which the FACC does not deny. They do not establish for whose benefit the corporation held it, and that is the fact the pleading alleges.

C. The 2025 Conveyance

Cross-Defendants argue that the FACC pleads no facts explaining why the interest survived the July 2025 conveyance from VIP Corp. to the Company. (Dem., at p. 9; Reply, at pp. 6-7.) The FACC pleads the facts the argument says are missing. It alleges that the conveyance was undertaken solely at Leonid's direction, that it was intended only to facilitate financing for the Friar Street Property, and that it was never intended to move the beneficial ownership away from Leonid or the Trust. (FACC, ¶ 28.) Those are the circumstances that raise a trust by operation of law, and the FACC alleges them of the second transfer as it alleges them of the first.

The FACC alleges that Leonid consented to Petrosov signing an operating agreement providing that "[t]itle to all [LLC] property will remain in the name of the [LLC]," and that no member would hold an ownership interest. (FACC, ¶ 29.) The first term fixes where record title sits, which is what the FACC alleges and what the recorded deed shows. Neither term speaks to the beneficial interest in the Property. And the FACC alleges the agreement was itself one of the steps Petrosov's representations induced, so it cannot be read against the pleader on this Demurrer. (FACC, ¶ 29.)

A resulting trust has "been termed an 'intention-enforcing' trust, to distinguish it from the other type of implied trust, the constructive or 'fraud-rectifying' trust." (Schroeder, supra, 179 Cal.App.4th at p. 848.) The fraud-rectifying trust governs the October conveyance. The FACC alleges that Petrosov took record title for himself against what he had promised, knowing that Leonid remained the beneficial owner. (FACC, ¶ 30.) One who gains a thing by fraud or by the violation of a trust "is, unless he or she has some other and better right thereto, an involuntary trustee of the thing gained, for the benefit of the person who would otherwise have had it." (Civ. Code, § 2224.) The two implied trusts operate in sequence rather than in competition: the resulting trust establishes that the beneficial interest stood apart from the record title through each conveyance, and the constructive trust is the consequence when the holder of the bare title conveyed it to one who took wrongfully with notice.

A limited liability company "is an entity distinct from its members," and a member injured only by the loss of company assets suffers a diminution in the value of a membership interest rather than a direct injury. (Corp. Code, § 17701.04, subd. (a); PacLink

Communications Internat., Inc. v. Superior Court (2001) 90 Cal.App.4th 958, 964.) That rule bars a member's individual suit for a wrong done to the company. Cross-Complainants do not sue as members. They claim an interest in the Property, and a claim to the res is not a claim through a membership interest.

D. The Prior Ruling

Cross-Defendants argue that the FACC substitutes a new legal label for the ownership theory the Court rejected on the first demurrer, and that the amendments therefore change nothing. (Reply, at pp. 10-11.) The prior ruling decided standing and did not reach the individual causes of action. It reasoned that Leonid did not hold title when he purported to transfer the Property to the Trust, that record title was held by an entity the pleading did not name, and that on the allegations then before the Court that entity was the party the alleged misrepresentations injured. (June 1, 2026 Minute Order, at pp. 4-5.)

The FACC pleads what the prior ruling found missing. It alleges that the entity held the record title and nothing else, on Leonid's instruction and for his benefit, and that it never took the beneficial interest at all. (FACC, ¶¶ 11, 13.) The original Cross-Complaint alleged the 2012 transfer in a single sentence and said nothing about the beneficial interest. (Cross-Compl., ¶ 10.) The FACC omits nothing the original pleading alleged; it adds the ultimate facts whose absence decided the first demurrer.

The Court concludes that the FACC alleges ultimate facts establishing that Leonid kept a legally cognizable equitable interest in the Property.

II. Standing

A. Trustee

Cross-Defendants argue that even if Leonid kept an equitable interest, the FACC alleges no transfer of that interest into the Trust. (Dem., at p. 5.) Not so. The FACC alleges that the Trust instrument identifies the Property as presently owned by Leonid and conveys and assigns all rights, title and interest in it as a "gift without consideration, to be held by this Living Trust." (FACC, ¶ 14.) The FACC further alleges that Michael became successor trustee on Leonid's death and succeeded to the causes of action arising from injury to Trust property. (FACC, ¶¶ 15, 18-20.)

The prior ruling rejected trustee standing because Leonid did not hold record title when he purported to convey to the Trust and no transfer to the Trust was ever recorded. (June 1, 2026 Minute Order, at p. 4.) The FACC answers both grounds. The interest it now alleges Leonid conveyed is the beneficial interest he kept, not the record title the entity held. “An unrecorded instrument is valid as between the parties thereto and those who have notice thereof.” (Civ. Code, § 1217.) Non-recordation matters to a subsequent purchaser of the same property “in good faith and for a valuable consideration” who records first. (Civ. Code, § 1214.) As between Leonid and the Trust, the transfer needed no recording, and Petrosov is alleged to have taken with notice that the beneficial ownership sat outside the record chain. (FACC, ¶¶ 28, 30.) The absence of a recorded conveyance therefore does not defeat the transfer the FACC pleads. Michael’s capacity to sue as trustee is therefore pleaded.

B. Successor in Interest

Cross-Defendants argue that the successor theory assumes the chain by which the claims became Leonid’s personal property at his death instead of pleading it. (Dem., at pp. 5-6.) A cause of action surviving the death of the person entitled to bring it “passes to the decedent’s successor in interest,” who may commence the action where there is no personal representative. (Code Civ. Proc., § 377.30.) The verified FACC alleges the date and place of Leonid’s death, that no proceeding for administration of his estate is pending in California, that Michael is his successor in interest under the terms of the Trust, and that no other person has a superior right to be substituted for him. (FACC, ¶ 2.) Those allegations track what Code of Civil Procedure section 377.32 requires of a successor in interest. The certified copy of the death certificate is attached to the original Cross-Complaint. (Cross-Compl., Exh. A; Code Civ. Proc., § 377.32, subd. (c).)

The prior ruling held that, on the allegations then pleaded, the entity holding record title was the party the alleged misrepresentations injured. (June 1, 2026 Minute Order, at p. 5.) Here, the FACC alleges that Leonid personally kept the beneficial interest, personally relied on Petrosov’s representations, and held the resulting claims immediately before he died. (FACC, ¶¶ 11-13, 21-22, 29, 30.) Those allegations state the personal injury the prior ruling found unpleaded and the surviving claims on which the successor theory depends.

The FACC pleads Michael's two capacities, trustee and successor in interest, as alternatives, and the Court treats them that way. Paragraph 20 alleges that to the extent legal title remained outside the Trust, the Trust retained Leonid's equitable ownership interest and the causes of action to recover the property. Paragraph 22 alleges that Michael is successor in interest independently of his status as trustee. The Court need not resolve which of these capacities governs here.

C. Beneficiary

Cross-Defendants argue that Steven's standing rests on nothing but his status as a beneficiary of the Trust, and that the status alone does not confer it. (Dem., at p. 6.) The FACC identifies Steven as a beneficiary and as one of the Trust's two remainder beneficiaries. (FACC, ¶¶ 1, 17.)

"At common law, where a cause of action is prosecuted on behalf of an express trust, the trustee is the real party in interest because the trustee has legal title to the cause." (Saks v. Damon Raike & Co. (1992) 7 Cal.App.4th 419, 427.) "The corollary to this rule is that the beneficiary of a trust generally is not the real party in interest and may not sue in the name of the trust." (Ibid.) Where a trustee cannot or will not enforce a claim the trustee ought to bring, the beneficiary may seek judicial compulsion against the trustee, and "[i]n order to prevent loss of or prejudice to a claim, the beneficiary may bring an action in equity joining the third person and the trustee." (Id. at pp. 427-428.) In sustaining the first demurrer, the Court observed that neither the pleading nor the opposition identified any exception to the rule against beneficiary standing. (June 1, 2026 Minute Order, at p. 4.) The FACC alleges none either. Michael is the trustee and is prosecuting these claims, so nothing in the FACC brings Steven within that course.

The Court sustains the Demurrer as to Steven on every cause of action, without leave to amend. The Court addresses the Demurrer as to Michael below.

III. Fraud

Cross-Defendants argue that the First Cause of Action pleads the alleged misrepresentations without the specificity fraud requires as to the identity of the speaker and the time, place, and manner of the statements, and that it pleads no justifiable reliance and no resulting damage. (Dem., at p. 2

[notice]; p. 13.) The elements of fraud “are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) The particularity requirement “necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’” (Id. at p. 645.)

Here, the FACC alleges that Petrosov told Leonid he could obtain financing to stop the foreclosure of the Friar Street Property if Leonid formed a limited liability company, transferred the Property into it, and made Petrosov its manager. It further alleges that Petrosov assured Leonid his interest in the Company existed only to obtain that financing, and that Leonid would remain the true owner of the Property. (FACC, ¶¶ 26-27.) It alleges that Leonid confided in Petrosov about the foreclosure and sought his advice in or around July 2025. (FACC, ¶¶ 24-25.) A promise made without any intention of performing it is itself a deceit. (Civ. Code, § 1710, subd. 4.) The FACC alleges that Petrosov never intended to keep those promises, and that his execution of the grant deed was the first act inconsistent with what he had promised. (FACC, ¶¶ 30, 33.)

According to the FACC, Leonid relied on those representations by filing articles of organization naming Petrosov as organizer, transferring the Property into the Company, and consenting to Petrosov signing an operating agreement providing that title to all company property remains in the Company’s name. (FACC, ¶ 29.) Petrosov is then alleged to have executed a grant deed conveying the Property from the Company to himself and, on the day Leonid was hospitalized, to have filed a statement of information naming himself the Company’s sole owner. (FACC, ¶¶ 29, 30.) Cross-Defendants argue that the pleading never connects the reliance to a loss. (Reply, at p. 8.) The FACC supplies the connection. It alleges that had Leonid known Petrosov meant to claim the Property for himself, he would never have authorized the transfer into the Company or allowed Petrosov to manage it. The transfer and the management authority are what put Petrosov in a position to deed the Property to himself. (FACC, ¶¶ 30, 35.) The FACC alleges that Leonid’s reliance was reasonable given the parties’ prior business association, and that Cross-Complainants were harmed as a result. (FACC, ¶¶ 36-38.)

The pleading names the speaker, the listener, the substance of what was said, and the period during which it was said. The two particulars missing are the place of the statements and the manner in which Petrosov made them. The man to whom the representations were made has died, and the claims are pressed by his son as trustee and as his successor in interest. Less specificity is required when "'it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy,'" and "'less particularity is required when the facts lie more in the knowledge of the opposite party ….'" (Committee on Children's Television, Inc. v. General Foods Corp., supra, 35 Cal.3d at p. 217.) The same principle applies to Cross-Complainants' pleading of Petrosov's intent and knowledge on information and belief. (Opp., at p. 8.) Petrosov knows where and how he spoke to Leonid, and the FACC identifies the conversations by occasion and period and says what he is alleged to have said in them.

Accordingly, the Demurrer to the First Cause of Action is overruled.

IV. Negligent Misrepresentation

Cross-Defendants argue that the Second Cause of Action pleads no specific misrepresentation, no factual basis for a duty, and no reasonable reliance. (Dem., at p. 14.) Cross-Complainants respond that a negligent misrepresentation claim differs from fraud only in requiring a representation made without reasonable grounds for believing it true, and that the FACC alleges every element of both counts. (Opp., at pp. 7-8.)

Deceit includes "[t]he assertion, as a fact, of that which is not true, by one who has no reasonable ground for believing it to be true." (Civ. Code, § 1710, subd. 2.) A false promise is actionable because the promise implies an intention to perform. The specific intent that makes it actionable "precludes pleading a false promise claim as a negligent misrepresentation, i.e., 'The assertion, as a fact, of that which is not true, by one who has no reasonable ground for believing it to be true.'" (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 159.)

The Second Cause of Action pleads a false promise. It identifies its misrepresentation as Petrosov's representation that Leonid should create the Company and install Petrosov as a member and manager solely to obtain financing for the Friar Street Property. (FACC, ¶ 41.) It alleges the representation was untrue because Petrosov planned to exploit Leonid's declining health, take an interest in the Company on a false promise, and use that interest to claim the

Property. (FACC, ¶ 42.) It alleges Petrosov made the representation intending to induce Leonid to act on it. (FACC, ¶ 43.) Those allegations describe a state of mind, and the state of mind they describe is the one Tarmann holds cannot be repleaded as negligence.

The Court therefore sustains the Demurrer to the Second Cause of Action with leave to amend.

V. Quiet Title

Cross-Defendants argue that the Third Cause of Action alleges no legally cognizable ownership interest, no valid chain of title, and no identified basis on which Cross-Complainants claim title. (Dem., at pp. 14-15.) A quiet title complaint states "[t]he title of the plaintiff as to which a determination under this chapter is sought and the basis of the title." (Code Civ. Proc., § 761.020, subd. (b).) Each of those grounds depends on the equitable interest addressed above.

Here, the FACC alleges that Cross-Complainants hold an interest in the Property adverse to Petrosov's claim of title, that his claim is without right and impairs their title, and that they ask the Court to adjudge that the Trust owns the Property in fee simple. (FACC, ¶¶ 47-51; Prayer, ¶ 4.) The count therefore states a claim against the adverse title Petrosov asserts.

Accordingly, the Demurrer to the Third Cause of Action is overruled.

VI. Conversion

Cross-Defendants argue that the Fourth Cause of Action seeks recovery for the loss of an interest in land and so states no claim for conversion. (Dem., at pp. 15-16.) "[I]t is generally acknowledged that conversion is a tort that may be committed only with relation to personal property and not real property." (Munger v. Moore (1970) 11 Cal.App.3d 1, 7.)

Here, the Fourth Cause of Action alleges that Cross-Complainants owned and had a right to possess the Property, and that Cross-Defendants interfered with that possession by claiming ownership, taking possession by moving in with their family, and refusing to return it on demand. (FACC, ¶¶ 53-55.) The thing allegedly taken is the residence, and the conduct alleged is its occupation.

Whether the interest asserted in it is legal or equitable, it is an interest in land.

Cross-Defendants also argue that the FACC alleges no ownership of, or right to possess, the property at issue. (Dem., at p. 3 [notice]; pp. 15-16.) As discussed above, the interest is pleaded, so the disposition of this claim rests on the nature of the property alone. This is also the only cause of action the FACC asserts against Hovhannisyan. (FACC, at pp. 8-12 [cause of action captions].)

The Court therefore sustains the Demurrer to the Fourth Cause of Action with leave to amend.

VII. Negligence

Cross-Defendants argue that the Fifth Cause of Action alleges no duty of care owed to Cross-Complainants independent of the contractual and fiduciary relationships pleaded elsewhere, and no breach of a duty separate from those obligations. (Dem., at p. 3 [notice]; p. 16.)

The FACC alleges that Petrosov owed a duty of reasonable care "arising from his membership and management of the LLC and its assets, i.e., the Hesperia Avenue Property, pursuant to his representations to Leonid and in the Operating Agreement, among other things." (FACC, ¶ 58.) It alleges the breach as his transfer of the Property from the Company to himself and his taking possession of it "in violation of the Operating Agreement and his agreement with Leonid, among other things." (FACC, ¶ 59.) It is true that "conduct amounting to a breach of contract becomes tortious only when it also violates a duty independent of the contract arising from principles of tort law." (Erlich v. Menezes (1999) 21 Cal.4th 543, 551.) A duty traced to an agreement is not independent of it.

However, the negligence count is not confined any agreement. The FACC alleges that Leonid, in declining health, went to Petrosov for advice about a foreclosure, that Petrosov devised the plan, that the plan put the Property into an entity Petrosov organized and then managed, and that Petrosov used the authority the plan gave him to take the Property for himself. (FACC, ¶¶ 24-30, 57.) Cross-Complainants rest the duty there, on the undertaking to advise and on the assumption of control over the entity holding the Property, and they identify the breach as a failure to use care in managing the Company and an exceeding of the authority entrusted to Petrosov. (Opp., at pp. 10-11.)

Accordingly, the Demurrer to the Fifth Cause of Action is overruled.

VIII. Declaratory Relief

Cross-Defendants argue that no actual controversy exists because Cross-Complainants hold no legally cognizable ownership or possessory interest in the Property. (Dem., at p. 3 [notice]; p. 17.) The argument rests on the premise addressed above. The FACC alleges that Petrosov claims ownership of the Property under the grant deed he executed and that Cross-Complainants claim it under the Trust. (FACC, ¶ 62.) A dispute over the parties' respective rights in property is an actual controversy for which a declaration may be sought. (Code Civ. Proc., § 1060.)

Accordingly, the Demurrer to the Sixth Cause of Action is overruled.

IX. Uncertainty

Cross-Defendants also challenge the FACC as a whole on the ground that it is uncertain, ambiguous, and unintelligible. (Dem., at pp. 3-4 [notice].) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's
of California, Inc. (1993) 14 Cal.App.4th 612, 616.) The FACC states the capacity in which each cross-complainant sues, identifies the Property by legal description and street address, and identifies the interest claimed and the source from which it is said to come. (FACC, ¶¶ 1-2, 7-8, 11-16.) A pleading that says that much tells Cross-Defendants what they must answer, and the ground as argued repeats the sufficiency challenge.

The Demurrer on the ground of uncertainty is overruled.

CONCLUSION

The Demurrer is sustained as to Cross-Complainant Steven Kamenetsky on every cause of action without leave to amend. As against Michael Kamenetsky, the Demurrer is sustained as to the Second and Fourth Causes of Action, with 20 days leave to amend and is otherwise overruled.